

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar. Do not call the department to verify if you should appear or not.** Please read below for the information. **If you would prefer to submit to the Court's tentative ruling without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and no party appears at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

September 22, 2026

10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Phipps vs. Hyundai Motor America 25-01481884	Demurrer to Complaint Defendant Hyundai Motor America (“Defendant”) demurs to the fifth cause of action for fraudulent inducement – concealment. Plaintiff Don Phipps (“Plaintiff”) opposes the motion. The Demurrer to the fifth cause of action for fraudulent inducement – concealment is SUSTAINED WITH LEAVE TO AMEND. “The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and

	would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40; see also Lazar v. Superior Court (1996) 12 Cal 4th 631, 638.) “A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff’s fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment).” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) “Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as “between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) “All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 41 [citing LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 337].) “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Rattagan v. Uber Technologies,
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Inc. (2024) 17 Cal.5th 1, 41 [citing Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 312].)

In Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844, the Court of Appeal found that a plaintiff sufficiently stated a cause of action for fraudulent inducement – concealment at the pleading stage. The Court found:

Plaintiffs alleged the above elements of fraud in the SAC. As we have discussed, plaintiffs alleged the CVT transmissions installed in numerous Nissan vehicles (including the one plaintiffs purchased) were defective; Nissan knew of the defects and the hazards they posed; Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information; Nissan intended to deceive plaintiffs by concealing known transmission problems; plaintiffs would not have purchased the car if they had known of the defects; and plaintiffs suffered damages in the form of money paid to purchase the car.

In its short argument on this point in its appellate brief, Nissan argues plaintiffs did not adequately plead the existence of a buyer-seller relationship between the parties, because plaintiffs bought the car from a Nissan dealership (not from Nissan itself). At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude plaintiffs’ allegations are sufficient. Plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. Considering these allegations, we decline to hold plaintiffs’ claim is barred on the ground there was no relationship requiring Nissan to disclose known defects.

Nissan also contends plaintiffs did not provide specifics about what Nissan should have disclosed.

But plaintiffs alleged the CVT transmissions were defective in that they caused such problems as hesitation, shaking, jerking, and failure to function. The SAC also alleged Nissan was aware of the defects as a result of premarket testing and consumer complaints that were made both to the National Highway Traffic Safety Administration and to Nissan and its dealers. It is not clear what additional information Nissan believes should have been included. We decline to hold (again in the absence of a more developed argument on this point) that plaintiffs were required to include in the SAC more detailed allegations about the alleged defects in the CVT transmissions. We conclude plaintiffs' fraud claim was adequately pleaded." (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844.)

Here, the Court finds that Plaintiff has not sufficiently alleged a contractual relationship with Defendant that would create a duty to disclose. First, the Complaint lacks facts surrounding the purchase of the vehicle, such as whether Plaintiff bought the vehicle directly from Defendant. Plaintiff merely alleges that Plaintiff "purchased a 2022 Hyundai IONIQ 5, vehicle identification number KM8KN4AE7NU070764 ("Subject Vehicle"), which was manufactured and or distributed by Defendant." (Complaint, ¶ 6.) Plaintiff does not allege that Defendant was the seller of the vehicle. In fact, Plaintiff does not indicate who was the seller of the vehicle. For this reason, Plaintiff's allegations are unlike those in Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828 where the plaintiff identified the seller in the complaint. Thus, Plaintiff does not allege a buyer-seller relationship that creates a duty to disclose.

The Court is also persuaded by Defendant's argument that the duty to disclose prior to the sale does not arise from the express warranties

		Defendant gave Plaintiff. The Court notes, however, that the Complaint does not explicitly state that Defendant gave Plaintiff express warranties – although, Plaintiff does allege that “Defendant HYUNDAI provided a warranty that contained various warranties, including but not limited to the bumper-bumper warranty, powertrain warranty, emission warranty, etc.” (Complaint, ¶ 7.) Still, express warranties are contractual in nature and therefore give rise to a contractual relationship. (See <i>Atkinson v. Elk Corporation of Texas</i> (2006) 142 Cal.App.4th 212, 229 [stating that express warranties are contractual in nature and implied warranties arise by operation of the law].) As Defendant argues, however, that relationship was only formed after the sale of the vehicle. Thus, the transactional relationship between Defendant and Plaintiff did not exist at the time of the sale and therefore Defendant did not owe Plaintiff a duty to disclose prior to the sale of the vehicle. (<i>Yeh v. Superior Court</i> (2023) 95 Cal.App.5th 264, 274 [“California law does not treat manufacturer warranties imposed outside the four corners of a retail sale contract as part of the sale contract.”] and 277 [“an express warranty arises out of a sale rather than the underlying contracts.”].) Plaintiff cites <i>Bader v. Johnson & Johnson</i> (2022) 86 Cal.App.5th 1094, 1132, as modified on denial of reh'g (Jan. 23, 2023) in attempts to argue there is a transactional relationship between a manufacturer or consumer. This argument, however, ignores the holding in <i>Bader</i>, which states that in order to find a transactional relationship between a manufacturer and consumer, there must be “direct dealings,” which may be established by “evidence that the manufacturer directly advertised its products to consumers” or evidence that the manufacturer “derived any monetary benefit directly from the consumer’s use of the product.” (<i>Ibid.</i>; see also
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		Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276.) Such allegations are not contained in the operative Complaint. Given the above, the Court finds that Plaintiff has not alleged a cause of action for fraudulent inducement – concealment because Plaintiff has not alleged the requisite transactional relationship that creates a duty to disclose. The Demurrer to the fifth cause of action for fraudulent inducement – concealment is SUSTAINED WITH LEAVE TO AMEND. Defendant to give notice.
102	Edwards vs. City of Dana Point 26- 01563072	Demurrer to Complaint Off Calendar -Notice of Withdrawal filed
103	Liu vs. Tran 25-01487015	1. Demurrer to Second Amended Complaint 2. Case Management Conference Defendant Kimberly Tran (“Kimberly”) demurs to the Second Amended Complaint (SAC) of plaintiff Shu Xia Liu (“Plaintiff”) on the ground that the seventh cause of action for aiding and abetting forgery fails to plead sufficient facts. For the reasons set forth below, the Demurrer is OVERRULED. Kimberly argues that Plaintiff has failed to plead that she had actual knowledge that a tort was being committed. In Casey v. U.S. Bank National Assn. (2005) 127 Cal.App.4th 1138, the court considered the issue of whether the knowledge element of an aiding and abetting claim had been sufficiently alleged. The plaintiffs asserted a claim for aiding and abetting